



Republic of the Philippines  
**MUNICIPALITY OF PRIETO DIAZ**  
Prieto Diaz, Sorsogon 4711  
LGU TIN: 000794065  
Official Email Add: [sbprietodiaz@gmail.com](mailto:sbprietodiaz@gmail.com)



## Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE SPECIAL SESSION OF THE 11<sup>TH</sup> SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON APRIL 12, 2023 AT ITS SESSION HALL

**PRESENT:**

Hon. Avon D. Domalaon, MPA  
Hon. Florence D. Detecio, RN  
Hon. Jo Madel D. Domalaon  
Hon. Bienvenido D. Ayo, Jr.  
Hon. Luis Lee E. Espeña, Jr.  
Hon. Alice D. Emano  
Hon. Rodolfo E. Diolata  
Hon. Juan D. Ebid  
Hon. Antonio J. Emano, Jr.

Municipal Vice Mayor/Presiding Officer  
S. B. Member  
-do-  
-do-  
-do-  
-do-  
-do-  
-do-  
LnB Pres. /S. B. Member

**ABSENT:**

Hon. Albert D. Destura  
Hon. Ronniel D. Diolata

S. B. Member – on leave  
SKMF Pres. – on leave

### ORDINANCE NO. 2023-06

Introduced by Hon. Alice D. Emano & Hon. Florence D. Detecio, RN

### **AN ORDINANCE PROHIBITING THE SALE OF VOLATILE SUBSTANCES/ SOLVENTS TO MINORS IN ALL BUSINESS ESTABLISHMENTS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON**

Be it ordained by the Sangguniang Bayan of Prieto Diaz, Sorsogon in session assembled, that;

SECTION 1. TITLE. This Ordinance shall be known as the "Prohibition of Selling of Volatile Substance/Solvents to Minors" Ordinance.

#### SECTION 2. SCOPE.

This ordinance shall apply to all hardware stores, sari-sari stores or any business establishments selling products containing volatile substances or solvents as defined in Section 3, within the territorial jurisdiction of Prieto Diaz, Sorsogon.

#### SECTION 3. RATIONALE

Solvent addiction has become prevalent among the minors, perhaps, in order for them to suppress hunger, cope with depression or due peer pressure, lack of parental guidance, among others. Reports reveal that certain substances which are openly sold

to the public are being availed of by drug dependents as substitutes for dangerous drugs. Medical researches show that the use of such substitutes could cause irreversible harm to the health of the kids, or even death. It could induce dependency and self-destructive or anti-social acts while under the influence thereof. The Local Government Unit of Prieto Diaz sees the need to address this problem and protect the future of the youth.

### SECTION 3. DEFINITION OF TERMS.

The following terms shall be used for this ordinance, to wit;

1. ESTABLISHMENT – any hardware stores, sari-sari store or any business establishment engaged in selling of goods and products including volatile substances and solvents
2. LOGBOOK – a record book kept by hardware stores, sari-sari store or any business establishment containing information of the name, address and purpose of the customer/s buying the product/s
3. MINORS – any person who is below eighteen (18) years of age
4. SOLVENT – shall mean any substance based on contact cement like rugby, Vulca seal, Fed seal, Elasto seal, thinner and other similar materials which can cause addiction
5. VOLATILE SUBSTANCES - shall mean and include any liquid, solid or mixed substance having the property of releasing toxic vapors or fumes containing one or more of the following chemical compounds: methanol, ethanol, isopropanol, ethyl acetate, n-propyl acetate, n-butyl acetate, acetone, methyl ethyl ketone, methyl butyl ketone, benzene, toluene, xylene, styrene, naphthalene, n-pentane, n-hexane, n-heptane, methylene chloride, trichloroethylene, tetrachloroethylene, nitrous oxide, dichlorodifluoromethane, chlorodifluoromethane, isoamyl nitrate, ether or chloroform or any other chemical substance which when sniffed, smelled, inhaled, or introduced into the physiological system of the body produces or induces a condition of intoxication, inebriation, excitement, stupefaction, dulling of the brain or nervous system, depression, giddiness, paralysis, or irrational behaviour or in any manner changing, distorting or disturbing the auditory, visual or mental processes.

### SECTION 4. REGULATORY ACTS.

- 4.1 SALE BY ESTABLISHMENTS. Owners / employees of all hardware stores, sari-sari stores or any business establishments in the municipality of Prieto Diaz, Sorsogon shall be prohibited from selling all kinds of volatile substance/solvents to minors. Furthermore, they are required to maintain a logbook where the name, address and purpose of customer/s buying the product/s shall be recorded.
- 4.2 REGULAR INSPECTION. The Business Permit and Licensing Office, under the Office of the Municipal Treasurer shall conduct regular inspection of the establishments defined in Section 3 to ensure strict compliance to the provision of the ordinance.

**Section 5. PENALTY CLAUSE.**

Owners / employees of all hardware stores, sari-sari stores or any business establishments found violating the said ordinance shall be meted with the following fines:

|                         |   |                                              |
|-------------------------|---|----------------------------------------------|
| 1 <sup>st</sup> offense | - | One thousand pesos (P 1,000.00)              |
| 2 <sup>nd</sup> offense | - | Two thousand pesos (P 2,000.00)              |
| 3 <sup>rd</sup> offense | - | Two thousand five hundred pesos (P 2,500.00) |
| 4 <sup>th</sup> offense | - | Revocation of Business Permit                |

**SECTION 6. ENFORCEMENT.** The members of the Municipal Police Station, SK Officials and Barangay Tanods are hereby directed to ensure the widest dissemination and strict implementation of this ordinance.

**SECTION 7. SEPARABILITY CLAUSE.** If any provision of this Ordinance found to be inconsistent with any law, other provisions or part/s thereof not so affected shall remain in full force and effect.

**SECTION 8. REPEALING CLAUSE.** All ordinances, resolutions, rules and regulations or parts thereof, in conflict with, or contrary to, the provisions of this ordinance are hereby repealed or modified accordingly.

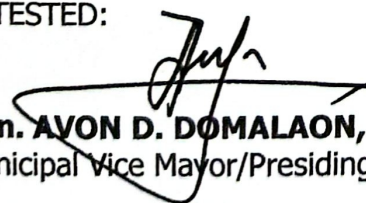
**SECTION 9. EFFECTIVITY.** This ordinance shall take effect 10 days after the required publication as per Local Government Code of 1991.

Let copies of this ordinance be forwarded to the Sangguniang Panlalawigan through Vice Governor Hon. Krunimar Antonio D. Escudero II, MDMG; copy furnished Hon. Romeo D. Domasian, Municipal Mayor; the Municipal Police Station through its OIC Chief of Police, PCpt. Cleto J. Gler; Ms. Gemma Ferrer, Municipal Treasurer; the 23 Sangguniang Barangays through their respective Punong Barangays; the 23 Sangguniang Kabataan through their respective SK Chairpersons; and all concerned for their information and appropriate action.

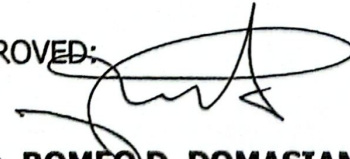
I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.

  
**BERNADETTE R. ESPEÑA-YAO**  
Secretary to the Sangguniang Bayan

ATTESTED:

  
**Hon. AVON D. DOMALAON, MPA**  
Municipal Vice Mayor/Presiding Officer

APPROVED:

  
**Hon. ROMEO D. DOMASIAN, Ph.D**  
Municipal Mayor  
Date approved: APR 19 2023



Republic of the Philippines  
PROVINCE OF SORSOGON  
Sorsogon City



## SANGGUNIANG PANLALAWIGAN

SP Building, Gov. Augusto G. Ortiz Drive corner, Gov. Salvador C. Escudero, Sr. Drive,  
Capitol Compound, Brgy. Burabod, East District, Sorsogon City

JUN 26 2023

May 16, 2023

TRANSMITTAL NO. **353-2023**

TRANSMITTAL FOR: **THE HONORABLE SANGGUNIANG BAYAN**

Thru: **Ms. BERNADETTE E. YAO**

Secretary to the Sangguniang Bayan

LGU – Prieto Diaz, Sorsogon

Respectfully transmitting the herein resolution approved by the 11<sup>th</sup> Provincial Board on **May 2, 2023 (44th Regular Session)** for your information and reference.

### RESOLUTION NO. 272-2023

RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2023-06, ENTITLED: "AN ORDINANCE PROHIBITING THE SALE OF VOLATILE SUBSTANCES/SOLVENTS TO MINORS IN ALL BUSINESS ESTABLISHMENTS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."

Prepared by:

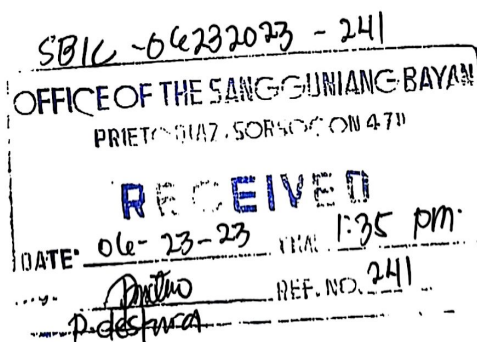
**RHEA T. DIESTA**

Local Legislative Staff Officer III

Noted:

**VLADIMIR C. VEGA**

Assistant Secretary to the Sangguniang Panlalawigan





Republic of the Philippines  
**PROVINCE OF SORSOGON**  
Sorsogon City



**SANGGUNIAN PANLALAWIGAN**

*SP Building Gov. Augusto G. Ortiz Drive corner Gov. Salvador C. Escudero, Sr. Drive,  
Capitol Compound, Brgy. Burabod, East District, Sorsogon City-4700*

EXCERPT FROM THE JOURNAL OF THE 44<sup>th</sup> REGULAR SESSION OF THE 11<sup>TH</sup> PROVINCIAL BOARD ON May 02, 2023 AT THE SP SESSION HALL, SANGGUNIAN PANLALAWIGAN BUILDING, GOV. AUGUSTO G. ORTIZ DRIVE COR. GOV. SALVADOR C. ESCUDERO, SR. DRIVE, CAPITOL COMPOUND, BRGY. BURABOD, EAST DISTRICT, SORSOGON CITY.

**PRESENT:**

Hon. Krunimar Antonio D. Escudero II, Vice Governor/Presiding Officer

**1<sup>ST</sup> DISTRICT**

Hon. John Ryan C. Dioneda  
Hon. Maria "Nini" O. Ravanilla  
Hon. Ralph Walter R. Lubiano  
Hon. Edmundo A. Atutubo  
Hon. Rommel John C. Mella

**2<sup>ND</sup> DISTRICT**

Hon. Ramil M. Robles  
Hon. Juan G. Guysayko  
Hon. Benito L. Doma  
Hon. Roland R. Afionuevo  
Hon. Eduardo E. Ong Jr.

**EX-OFFICIO**

Hon. Ramon B. Escudero – Provincial President, Philippine Councilors League  
Hon. Jose Arturo D. Enano – Provincial President, Liga ng mga Barangay  
Hon. Lorenz S. Abenion – Provincial President, Sangguniang Kabataan Federation

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**RESOLUTION NO. 272-2023**

**RESOLUTION DECLARING VALID PRIETO DIAZ ORDINANCE NO. 2023-06, ENTITLED: "AN ORDINANCE PROHIBITING THE SALE OF VOLATILE SUBSTANCES/SOLVENTS TO MINORS IN ALL BUSINESS ESTABLISHMENTS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON."**

**WHEREAS**, submitted to the Sangguniang Panlalawigan of Sorsogon was Prieto Diaz Ordinance No. 2023-06 for review and appropriate action;

**WHEREAS**, the ordinance aims to deviate minor from the misuse of volatile substances/solvents since they pose serious health consequences of physical-mental damage and even death;

**WHEREAS**, the ordinance conforms to Presidential Decree No. 1619 entitled, "PENALIZING THE USE OR POSSESSION OR THE UNAUTHORIZED SALE TO MINORS OF VOLATILE SUBSTANCES FOR THE PURPOSE OF INDUCING INTOXICATION OR IN ANY MANNER CHANGING, DISTORTING OR DISTURBING THE AUDITORY, VISUAL OR MENTAL PROCESS," and Section 16 General Welfare Clause of Republic Act No. 7160, otherwise known as the Local Government Code of 1991, which reads:

*“Every local government unit shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare. Within their respective territorial jurisdictions, local government units shall ensure and support, among other things, the preservation and enrichment of culture, promote health and safety, enhance the right of the people to a balanced ecology, encourage and support the development of appropriate and self-reliant scientific and technological capabilities, improve public morals, enhance economic prosperity and social justice, promote full employment among their residents, maintain peace and order, and preserve the comfort and convenience of their inhabitants.”;*

**WHEREAS**, Prieto Diaz Ordinance No. 2023-06 is *intra vires* as provided in the Local Government Code of 1991;

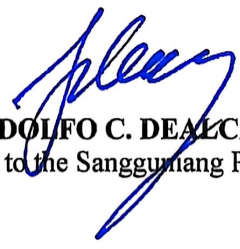
**NOW, THEREFORE**, on motion of Hon. Edmundo A. Atutubo, jointly seconded by Hon. Jose Arturo D. Enano and Hon. Ramil M. Robles, the Board **RESOLVED**, as it is hereby **DONE**, to **DECLARE VALID PRIETO DIAZ ORDINANCE NO. 2023-06, ENTITLED: “AN ORDINANCE PROHIBITING THE SALE OF VOLATILE SUBSTANCES/SOLVENTS TO MINORS IN ALL BUSINESS ESTABLISHMENTS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.”**

**LET COPIES** of this resolution be furnished Mayor Romeo D. Domasian and the Sangguniang Bayan of Prieto Diaz, Sorsogon for their information, guidance and appropriate action.

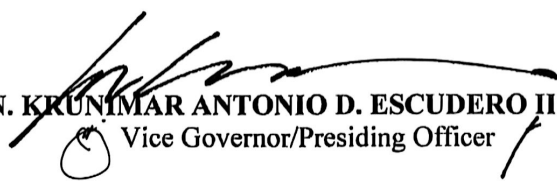
**APPROVED.**

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**I HEREBY CERTIFY** to the correctness of the foregoing.

  
**RODOLFO C. DEALCA, JR.**  
Secretary to the Sangguniang Panlalawigan

**ATTESTED:**

  
**HON. KRUNIMAR ANTONIO D. ESCUDERO II, MDMG**  
Vice Governor/Presiding Officer